

Multiple Choice (10 marks)

1. Termination of a parent's custody rights and also termination of welfare benefits both require what type of process?
 - (a) Prior notice and prior evidentiary hearing
 - (b) Prior notice and opportunity to respond
 - (c) Prior screening by neutral fact finder
 - (d) Prior screening and subsequent evidentiary hearing
2. There is a voting law that is going to be reviewed by the court. If the law is upheld, what must be true?
 - (a) The law is necessary to achieve a compelling government purpose.
 - (b) The law is substantially related to an important government purpose.
 - (c) The law is rationally related to a legitimate government purpose.
 - (d) The law is substantially related to a legitimate government purpose.
3. Judge took judicial notice of some facts at the beginning of the trial. Which of the following is not an appropriate kind of fact for judicial notice?
 - (a) Indisputable facts.
 - (b) Facts that have been asserted by individual political organizations.
 - (c) Facts recognized to be true by common knowledge.
 - (d) Facts capable of scientific verification.
4. Which is the hierarchy of U.S. Law?
 - (a) Executive agreements, U.S. Constitution, treaties and federal statutes, state law
 - (b) U.S constitution, treaties and federal statutes, executive agreements, state law
 - (c) Treaties and federal statutes, US Constitution, executive agreements, state law
 - (d) U.S constitution, executive agreements, treaties and federal statutes, state law
5. In which situation would a Defendant not be held to the standard of care of a reasonable person?
 - (a) Defendant is deaf, and is accused of being negligent in failing to heed a warning bell.
 - (b) Defendant has poor judgment.
 - (c) Defendant is hot-tempered and damaged property in a tantrum.
 - (d) Defendant has an I.Q. of 85.

True / False (10 marks)

Answer True or False

6. True or False: Common law burglary requires a breaking and entry of a dwelling at any time of day or night.
7. True or False: Discriminatory effect alone is sufficient to demonstrate governmental intent to discriminate in constitutional law.
8. True or False: Cold pursuit is not recognized as a warrantless search exception under constitutional law.
9. True or False: The Rule in Shelley's Case invalidates future interests by merging a life estate and a remainder in one person.
10. True or False: The necessary and proper power is sufficient on its own to support the enactment of federal laws in all circumstances.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the constitutional considerations that might justify the imposition of the death penalty in cases involving the murder of law enforcement officers during the commission of a crime.
12. Discuss the implications of additional terms proposed in the acceptance of transactions between merchants, specifically analyzing the conditions under which these terms become part of the contract.

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